

G.O.Ms.No.522, G.A. (Spl.C) Dept., dt.21.07.2007 regarding definition of ‘Vigilance Angle’.

Subject Heading : A.P. Vigilance Commission – Scheme defining jurisdiction, powers etc. of Vigilance Commission – Definition of ‘Vigilance angle’ – Incorporated – Orders – Issued.

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Read the following :

1. G.O.Ms.No.421, G.A. (SC.D) Dept., dt.03.08.1993.
2. G.O.Ms.No.147, G.A. (Spl.B) Dept., dt.01.05.2000.

ORDER :

In the GOs 1st and 2nd read above, orders were issued defining the jurisdiction and powers etc. of the Vigilance Commission.

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2. It has been brought to the notice of the Government that the term ‘Vigilance angle’ has not been comprehensively defined in the Vigilance Manual and the Central Vigilance Commission has formulated a revised definition of ‘Vigilance angle’.

3. Government after careful examination of the matter have decided to redefine the term ‘Vigilance angle’ as formulated by the Central Vigilance Commission and to incorporate the same under para (6) of Scheme of Vigilance Commission issued vide G.O. 1st read above. Accordingly, the following definition of the ‘Vigilance angle’ shall be incorporated under para (6) as item (xvii) of the G.O. 1st read above.

- (i) Demanding and / or accepting gratification other than legal remuneration in respect of an official act or for using his influence with any other official.
- (ii) Obtaining valuable thing, without consideration or with inadequate consideration from a person with whom he has or likely to have official dealings or his subordinates have official dealings or where he can exert influence.
- (iii) Obtaining for himself or for any other person any valuable thing or pecuniary advantage by corrupt or illegal means or by abusing his position as a public servant.
- (iv) Possession of assets disproportionate to his known sources of income.
- (v) Cases of misappropriation, forgery or cheating or other similar criminal offences.
- (vi) Other irregularities where circumstances will have to be weighed carefully to take a view whether the officer’s integrity is in doubt, Gross or willful negligence, recklessness in decision making, blatant violations of systems and procedures,

exercise of discretion in excess, where no ostensible / public interest is evident, failure to keep the controlling authority / superiors informed in time.

- (vii) Any undue / unjustified delay in the disposal of a case, perceived after considering all relevant factors, would reinforce a conclusion as to the presence of Vigilance angle in a case.
- (viii) Absence of Vigilance angle in various acts of omission and commission does not mean that the concerned official is not liable to face the consequences of his actions. All such lapses not attracting vigilance angle would, indeed, have to be dealt with appropriately as per the disciplinary procedure under the service rules.

4. The above definition of 'Vigilance angle' shall be incorporated under item-1 of Chapter-I of Vigilance Manual, Volume-I.

5. The Secretary to A.P. Vigilance Commission is requested to take necessary action in the matter.